

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

SERON DOUGLAS,

Plaintiff(s),

Index No.:

-against-

Venue Based upon

C.P.L.R. 503(a), as the venue
where a substantial part of the
acts and omissions occurred

NAJI AL ABDI, MOHAMED ALI,
ONE FAMILY DELI GROCERY CORP.,
CITY OF NEW YORK,
P.O. JOHNNY OSORIO, SHIELD NO.: 18978
AND PO JOHN LATANZIO, SHIELD NO.: 8320
Defendant(s).

SUMMONS IN A CIVIL ACTION

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
June 25, 2021

Yours etc,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY: _____

Michael H. Joseph, Esq.
203 East Post Road
White Plains, New York 10601
Tel: (914) 574 8330
Fax: (914) 358-5379

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

SERON DOUGLAS,

Plaintiff(s),

Index No.:

-against-

NAJI AL ABDI, MOHAMED ALI,
ONE FAMILY DELI GROCERY CORP.,
CITY OF NEW YORK, P.O.

JOHNNY OSORIO, SHIELD NO.: 18978

AND PO JOHN LATANZIO, SHIELD NO.: 8320

Defendant(s).

VERIFIED COMPLAINT

Plaintiff by and through his undersigned attorney, complains of the defendants, as follows:

1. Plaintiff, Seron Douglas (hereinafter "Plaintiff") is and at all times relevant herein was a resident of the State of New York and currently resides in Bronx County.
2. Upon information and belief, Defendant Naji Al Abdi, (hereinafter "Abdi") at all times material to this complaint, was and is a resident of Bronx County, State of New York.
3. Upon information and belief, Defendant Mohamed Ali, (hereinafter "Ali") at all times material to this complaint, was and is a resident of Bronx County, State of New York.
4. One Family Deli Grocery Corp., (Hereinafter "Deli") is and at all times relevant herein was a domestic corporation, existing under and by virtue of the laws of the State of New York, with its principal place of business in Bronx County.
5. Deli, at all times relevant herein, operated a store front delicatessen and grocery business at 292 East 166th Street, Bronx, NY 10465.

6. Defendant Johnny Osorio, (Hereinafter “Osorio”) upon information and belief, at all times material to this complaint, was and is a resident of Bronx County, State of New York.
7. Defendant John Latanzio, (Hereinafter “Latanzio”) upon information and belief, at all times material to this complaint, was and is a resident of Bronx County, State of New York.
8. At all relevant times herein, City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
9. On or about October 3, 2020 and at all times relevant herein Ali was an owner of Deli and/or had managerial authority for said entity.
10. On or about October 3, 2020 and at all times relevant herein Abdi was an owner of Deli and/or had managerial authority for said entity.
11. On or about October 3, 2020 and at all times relevant herein Ali was employed by Deli and was acting in the course and scope of his employment.
12. On or about October 3, 2020 and at all times relevant herein Abdi was employed by Deli and was acting in the course and scope of his employment.
13. On or about October 3, 2020 at about 3:55 p.m., and at all relevant times herein, Osorio was a duly sworn police officer, bearing Shield No.:18978 and was employed by the City of New York.
14. On or about October 3, 2020 at about 3:55 p.m., and at all relevant times herein, Latanzio was a duly sworn police officer, bearing Shield No.: 8320 and was employed by the City of New York.

15. On or about October 3, 2020 at about 3:55 p.m., Osorio was employed by the City of New York and was acting in the course and scope of his employment.
16. On or about October 3, 2020 at about 3:55 p.m., Latanzio was employed by the City of New York and was acting in the course and scope of his employment.
17. Defendant Latanzio was at all times relevant herein, acting under the color of law.
18. Defendant Osorio was at all times relevant herein, acting under the color of law.

COUNT I: ASSAULT AND BATTERY

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.
20. On or about October 3, 2020 at about 3:45 p.m., Plaintiff was a patron at the Deli.
21. On or about October 3, 2020 at about 3:45 p.m., defendants Ali and Abdi were working at the Deli.
22. On or about October 3, 2020 at about 3:45 p.m., defendants Ali and Abdi instigated a verbal confrontation with Plaintiff, and then escalated the altercation and physically attacked the Plaintiff.
23. At the aforesaid date time and place, defendants Ali and Abdi, both individually and while acting in concert with each other, assaulted, battered and attacked the Plaintiff, and continued to repeatedly strike, punch and kick the Plaintiff and used excessive and unnecessary force without cause or justification and without Plaintiff's consent.
24. On the aforesaid date, time and place, defendants Ali and Abdi willfully subjected the Plaintiff to physical force, and assaulted and battered the Plaintiff.
25. The aforesaid actions were excessive and unnecessary and were in extraordinary response to the actions of the Plaintiff.

26. The aforesaid actions done by defendant were done maliciously with the specific intent to injure and harm Plaintiff.
27. Solely as a result of the foregoing, Plaintiff was caused to sustain personal injuries and has been rendered sore and lame, the full extent of which is not yet known, he has been caused to incur the costs of medical treatment and has been caused to endure pain, suffering, disability, emotional shock and suffering as a result of the foregoing actions and upon information and belief, some of these injuries are permanent.
28. Solely as a result of the foregoing, Plaintiff has in the past been, presently is, and will in the future, continue to be disabled from performing his usual duties, occupations and avocations, he has in the past and will in the future suffer loss of income, and has and will incur other pecuniary losses.
29. Defendants are jointly and severally liable.
30. Deli is vicariously liable for the intentional torts of defendants Ali and Abdi.
31. The battery of the Plaintiff was committed and ratified by the Deli's agents with managerial authority.
32. One or more of the exceptions to CPLR Article 16 applies.
33. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

**COUNT II: FALSE ARREST AND MALICIOUS PROSECUTION AS AGAINST
NAJI AL ABDI, MOHAMED ALI and ONE FAMILY DELI GROCERY
CORP.**

34. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length

35. On or about October 3, 2020 at about 3:45 p.m., defendants Ali and Abdi, called the police and provided knowingly false and fictitious accounts of the aforesaid incident, in that among other things, they falsely reported to the police (i) that Plaintiff intentionally stole property by leaving the store without paying for items, (ii) that Plaintiff subjected the Defendants Ali and Abdi to physical contact or threatened to do same and that Plaintiff struck Abdi in the face with a fist, (iii) that the Plaintiff threatened them with a deadly weapon by entering the store with a razor and threatening to cut them.
36. Defendants Ali and Abdi, at all times relevant herein, failed to disclose to the responding police officers, that Plaintiff had paid for the goods with a card but that the payment failed to process, and that Ali and Abdi were the aggressors and physically attacked the Plaintiff.
37. By and through the aforesaid misrepresentations and failure to make a full and complete statement of the facts, Plaintiff was falsely arrested.
38. At all times relevant herein, there was no probable cause to believe that Plaintiff committed the aforesaid acts.
39. By and through the foregoing, Defendants Ali and Abdi provided a fictitious account of the aforesaid incident, which resulted in the Plaintiff's arrest.
40. By and through the foregoing, Defendants Ali and Abdi provided a fictitious account of the aforesaid incident, which resulted in the initiation of a prosecution against the Plaintiff for Petit Larceny, Assault in the Third Degree, Harassment in the Second Degree, Menacing in the Second Degree, Criminal Possession of a Weapon in the Fourth Degree.

41. By and through the foregoing, Defendants Abdi and Ali, knowing provided a fabricated account of the events to the police and the prosecutor and withheld information and evidence from the police and prosecutor, which vitiated probable cause.
42. The aforementioned actions were done by Defendants with Malice and to frame Plaintiff for crimes which he did not commit
43. By and through the foregoing, Defendants Abdi and Ali, initiated and continued the prosecution against the Plaintiff.
44. At all times relevant herein, there was no probable cause to believe that a prosecution could succeed.
45. The aforesaid arrest and prosecution were instituted with malice, by the defendants Ali and Abdi.
46. The aforesaid prosecution was resolved in the Plaintiff's favor and dismissed on the basis of C.P.L. § 30.30.
47. As a direct and proximate result of the foregoing acts committed by the defendants Ali and Abdi, the Plaintiff was deprived of his liberty and freedom, he was falsely arrested and maliciously prosecuted.
48. By and through the foregoing, Defendants Ali and Abdi are liable for false arrest and malicious prosecution.
49. Plaintiff suffered great humiliation, ridicule, and mental anguish, depression, mental shock, mental trauma, emotional and mental suffering as a result of his unlawful prosecution.
50. Defendants Ali and Abdi are jointly and severally liable for the damages sought herein for false arrest and malicious prosecution.

51. Deli is liable for the acts and omissions of Ali and Abdi, on the basis of respondeat superior.

COUNT III: NEGLIGENCE AGAINST OSORIO AND CITY OF NEW YORK

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
53. On or about October 3, 2020 at about 3:45 p.m, Defendant, City of New York was the owner of a motor vehicle bearing plate number 4352 and/or 4352 -18 (Hereinafter “the vehicle”), as that term is defined by the common law and § 388 of the Vehicle and Traffic Law.
54. At all relevant times, Defendant Osorio was the operator of the Vehicle.
55. On or about October 3, 2020 at about 3:55 PM, Osorio was operating the vehicle on East 165th Street and Morris Avenue in Bronx County, in the City and State of New York.
56. On the aforesaid date, time and place, Osorio was operating the vehicle with the vehicle owner’s authorization, and within the course and scope of his employment.
57. On or about October 3, 2020 at about 3:55 PM, Plaintiff was a pedestrian and was running on the sidewalk in the vicinity of the intersection of East 165th Street and Morris Avenue in Bronx County, in the City and State of New York.
58. On or about October 3, 2020 at about 3:55 PM, the intersection of East 165th Street and Morris Avenue in Bronx County, in the City and State of New York was a public thoroughfare and was traveled over as such.
59. At the aforementioned, time, date and place, Defendant Osorio was negligent, careless and reckless in the operation and control of the vehicle, in that among other things, he carelessly drove the vehicle onto the public sidewalk and caused, permitted and suffered

the vehicle to strike the Plaintiff, he failed to operate the vehicle in a reasonable and prudent manner, failed to make timely use of the brakes, failed to keep the vehicle under proper control, failed to avoid the accident from occurring and otherwise failed to follow the applicable section of the Vehicle and Traffic Law.

60. On aforesaid date, time and place, the vehicle collided with the Plaintiff.
61. As a result of said collision, plaintiff was severely injured.
62. Plaintiff's injuries were caused solely and wholly by and through the carelessness and negligence of the defendant, in that, among other things, they operated and/or controlled said vehicles in a negligent and careless manner and at an excessive rate of speed; in that defendant failed to keep the motor vehicle under proper control; in that defendant failed to operate the motor vehicle in a reasonable and prudent manner, in that defendant failed to keep proper look out, so as to avoid the happening of this accident; in that defendant failed to have due regard for pedestrians on the sidewalk; in that defendant violated the applicable statutes and ordinances of the State of New York and the subdivisions thereof including but not limited to the vehicle and traffic law.
63. Plaintiff's injuries were caused solely and wholly by and through the carelessness negligence and recklessness of the defendants, in that, among other things, they operated and/or controlled said vehicles in a negligent, reckless and careless manner and at an excessive rate of speed; in that defendants failed to keep their motor vehicles under proper control; in that defendants failed to operate the motor vehicles in a reasonable and prudent manner, in that defendants failed to keep proper look out, so as to avoid the happening of this accident; in that defendants failed to have due regard for pedestrians on the sidewalk; in that they failed to take proper consideration and make appropriate

adjustment; in that defendant violated the applicable statutes and ordinances of the State of New York and the subdivisions thereof including but not limited to the vehicle and traffic law.

64. Said collision and the resulting serious personal injuries sustained by plaintiff were due to the negligence and recklessness of defendant in the ownership, operation, and control of the vehicle.
65. Plaintiff has sustained a "serious injury" as defined by Section 5102 (d) of the Insurance Law of the State of New York and have further suffered economic loss greater than basic economic loss as defined in Section 5102 (a) of the Insurance Law of the State of New York.
66. As a result of the aforesaid, Plaintiff sustained serious personal injuries and has been rendered sick, sore lame and disabled and have suffered and continue to suffer great pain and anguish and have been disabled and on information and belief continue to be disabled; the full extent of which is not yet known, he sustained severe injury and shock to his face, mouth, back, neck, nerves and nervous systems, muscles, tendons, ligaments and cartilage; he has and in the past require and will in the future require medical treatment, care and attention; he has in the past been and will in the future be obliged to expend monies and incur obligations for medical care, attention and treatment of their injuries and the necessary incidents thereof, and on information and belief, some of such injuries are permanent.
67. Plaintiff has in the past been, presently are, and will in the future, continue to be incapacitated from pursuing her usual duties, occupations, vocations, avocations, hobbies and/or recreational pursuits.

68. The claim comes within one of the exceptions of Article 16 of the CPLR, Section 1602
69. The amounts sought herein exceed the jurisdictional limitations of all lower courts.
70. The City of New York is liable to plaintiff both under Vehicle and Traffic law §388 and on the basis of respondeat superior.
71. Within ninety days after the occurrence complained of herein, plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.
72. A statutory hearing has been held and all prerequisites to suit have been fulfilled.

**COUNT IV: FAILURE TO PAY NO FAULT BENEFITS AGAINST
THE CITY OF NEW YORK**

73. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
74. The vehicle is and at all times relevant herein was a motor vehicle as that term is defined by Insurance Law § 5102(f).
75. Defendant, City of New York at all times material to this complaint, was an owner of a motor vehicle as that term is defined by Insurance Law § 5102(e).
76. The Defendant City of New York, was at all times relevant herein self insured for its obligations to provide first party benefits under Insurance Law § 5102(b), with respect to the vehicle.

77. As a result of the accident, more thoroughly described in Count III infra, plaintiff was injured and as a result thereof was entitled to receive Basic Economic Loss ("BEL) as defined by New York Insurance Law § 5102, from the City of New York.
78. On or about October 7, 2020, Plaintiff submitted a NF2 to Defendant City of New York and timely made claim for First Party Benefits.
79. As a result of the injuries, which Plaintiff sustained in the aforesaid motor vehicle accident, Plaintiff became injured and was required to seek medical attention, as a result of which, he incurred costs and obligations, which the City of New York was obligated to pay, through its no fault obligations to the Plaintiff.
80. By and through the foregoing Plaintiff was entitled to reimbursement of medical costs from the City of New York.
81. At all times, relevant herein, the defendant City of New York, without cause or justification, failed to pay Plaintiff's medical bills or otherwise provide no fault benefits.
82. By and through the foregoing, Defendant City of New York breached its obligation to Plaintiff in failing to pay the First Party Benefits for which he was entitled.
83. Defendant City of New York 's aforesaid conduct violated its obligations pursuant to the Insurance Law of the State of New York.
84. Defendant City of New York is liable to Plaintiff for statutory interest, penalties, and attorney's fees.
85. As a result thereof, Plaintiff has been damaged in an amount to be proven at trial.
86. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

87. Within ninety days after the occurrence complained of herein, plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

88. A statutory hearing has been held and all prerequisites to suit have been fulfilled.

**COUNT V: BATTERY UNDER NEW YORK STATE LAW AND EXCESSIVE FORCE
UNDER 42 USC § 1983**

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.

90. On or about October 3, 2020 at about 3:55 PM, at the intersection of East 165th Street and Morris Avenue in Bronx County, in the City and State of New York, Defendants Latanzio and Osorio, arrested the Plaintiff based upon the aforesaid false information provided by Ali and Abdi.

91. At the aforesaid time, date and place, Osorio, subjected Plaintiff to excessive and unreasonable force, in that Osorio, intentionally utilized the vehicle as a weapon and intentionally drove the vehicle on the sidewalk, and caused the vehicle to strike the Plaintiff causing him to fall to the ground.

92. At the aforesaid time date and place, after Plaintiff was injured and laying on the ground and posed no threat to the defendants, Defendant Latanzio utilized a taser on the Plaintiff.

93. The aforesaid use of a motor vehicle to hit the Plaintiff to stop him from fleeing was excessive and unreasonable under the circumstances.

94. The use of the aforesaid taser occurred when Plaintiff was injured and incapable of fleeing due to his injuries from being struck by the vehicle, and was unreasonable and excessive under the circumstances.
95. At all times relevant herein, Plaintiff did not consent to Defendant(s) having physical contact with him or committing the aforesaid acts.
96. The aforesaid force was exerted without cause, justification or privilege.
97. The aforementioned actions of Osorio and Latanzio, constituted a battery under New York State Law.
98. The aforesaid actions of Osorio and Latanzio, violated the Plaintiff's constitutional rights against unreasonable seizure and his rights under the Fourth amendment, not to be subjected to excessive and unreasonable force and Defendants are liable to Plaintiff under 42 USC § 1983.
99. As a result of the foregoing, Plaintiff sustained serious injuries to his body, the full extent of which is not known, including but not limited fractures of his face, teeth, injury to his nerves, and his body he has suffered in the past and continues to suffer great pain and mental anguish.
100. Plaintiff has in the past been, presently is, and will in the future, continue to be incapacitated from pursuing usual duties, occupations, vocations, avocations, hobbies and/or recreational pursuits.
101. The City of New York is vicariously liable for the acts of Osorio and Latanzio.
102. The foregoing force which Osorio and Latanzio subjected Plaintiff to constituted a seizure of the Plaintiff.

103. Solely by reason of the foregoing, excessive and unreasonable force and the unlawful seizure, by Osorio and Latanzio, Plaintiff was caused to be deprived of his rights, liberties and privileges under the Fourth and Fourteenth Amendments to the United States Constitution, and further deprived him of his rights, liberties and privileges, and the laws of the State of New York, and Plaintiff has been caused to sustain personal injuries more fully set forth herein.
104. Defendants' actions were objectively unreasonable and shocked the conscience.
105. At all times relevant herein, Defendants lacked probable cause to believe that plaintiff posed a threat of serious physical harm to them or others.
107. Defendants are liable for compensatory, exemplary and punitive damages pursuant to 42 U.S.C. § 1983.
108. Within ninety days after the occurrence complained of herein, plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.
109. A statutory hearing has been held and all prerequisites to suit have been fulfilled.
- COUNT VI: MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW
AND 42 U.S.C. § 1983**
110. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

111. On or about October 3, 2020, Latazio, falsely reported to fellow officers and filled out police paperwork that Plaintiff threw a bicycle at him and hit him with said bicycle, and in so doing, caused him physical injury.
112. Latazio, at all times relevant herein, knew that the aforementioned police paperwork would be forwarded to the prosecutor's office.
113. Latazio, at all times relevant herein initiated a prosecution against the Plaintiff for Assault in the Second Degree and Assault in the Third Degree, based upon inaccurate, exaggerated and fabricated allegations that Plaintiff threw a bicycle at him which hit him in the arm and caused injury.
114. At all times relevant herein, Latazio, took the aforesaid actions, to cover up the fact that he and his fellow officer Osorio, subjected Plaintiff to excessive and unreasonable force.
115. Latazio further provided knowingly false, and/or exaggerated information for inclusion in an accusatory instrument, which charged Plaintiff with Assault in the Second Degree and Assault in the Third Degree.
116. Latazio, at all times relevant herein, failed to disclose and withheld from the prosecutor that Plaintiff did not actually throw a bike at him and that he did not have any such injury.
117. By and through the foregoing, Latazio instituted and continued a prosecution against the Plaintiff.
118. At all times relevant herein, there was no probable cause to believe that the prosecution against the Plaintiff for Assault in the Second Degree and Assault in the Third Degree, could succeed.
119. The aforesaid prosecution was initiated and continued with malice.

120. At all times relevant herein, defendant Latazio acted with intent to do harm to plaintiff without excuse or justification.
121. The aforesaid prosecution was terminated in the Plaintiff's favor.
122. By and through the foregoing actions of the defendants, Plaintiff was falsely arrested, maliciously prosecuted and deprived of his Due Process rights not to be prosecuted based upon fabricated evidence.
123. Solely by reason of the foregoing, Plaintiff was caused to be deprived of his liberty, caused to be subjected to restrictions on his freedom and otherwise deprived of his civil rights and liberties under the under the Fourth, Fifth and Fourteenth amendments under the United States Constitution, as well as rights under the New York State Constitution including but not limited to the right to due process, the right not to be unreasonably seized, right not to be prosecuted with the use of fabricated evidence, the right not be arrested and imprisoned without probable cause and Defendants unreasonably seized the Plaintiff and violated his civil and constitutional rights.
124. Defendants' actions violated clearly established rights.
125. Defendants' action shocks the conscience.
126. No reasonable officer in the position of the defendants would have believed the actions of the defendants herein was objectively reasonable.
127. As a direct and proximate result of the foregoing acts committed by the defendants, the Plaintiff's liberty was constrained in that his freedom of travel was restricted and conditions of bail were placed upon his freedom, he was further caused to suffer shock, humiliation, fear and embarrassment, ridicule, and mental anguish, depression, mental shock and mental trauma.

128. Within ninety days after the occurrence complained of herein, plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the City of New York has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

129. A statutory hearing has been held and all prerequisites to suit have been fulfilled.

COUNT VII: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

130. Plaintiff repeats and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

131. The foregoing events constitute violations of plaintiff's statutory and constitutional rights, thereby entitling him to attorneys fees, costs and disbursements as permitted by 28 U.S.C. § 1988

WHEREFORE, plaintiff prays that judgment be entered against the Defendants in favor of Plaintiff for an amount to be determined by the trier of fact for compensatory, punitive exemplary damages, , together with costs, attorney's fees, disbursements and interest, along with whatever further relief this Court deems just and proper.

Dated: White Plains, N.Y.
June 25, 2021

Yours etc,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY: 

Michael H. Joseph, Esq.
203 East Post Road
White Plains, New York 10601
Tel: (914) 574 8330
Fax: (914) 358-5379

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

SERON DOUGLAS,

Plaintiff(s),

Index No.:

-against-

NAJI AL ABDI, MOHAMED ALI,
ONE FAMILY DELI GROCERY CORP.,
CITY OF NEW YORK,
P.O. JOHNNY OSORIO, SHIELD NO.: 18978
AND PO JOHN LATANZIO, SHIELD NO.: 8320
Defendant(s).

NOTICE OF ELECTRONIC FILING
(Mandatory Case)
(Uniform Rule § 202.5-b)

You have received this Notice because:

- 1) The Plaintiff/Petitioner, whose name is listed above, has filed this case using the New York State Courts E-Filing system ("NYSCEF") above, and
- 2) You are a Defendant/Respondent (a party) in this case.

- **If you are represented by an attorney:**
Give this Notice to your attorney. (Attorneys: see "Information for Attorneys" pg.2).
- **If you are not represented by an attorney:**
You will be served with all documents in paper and you must serve and file your documents in paper, unless you choose to participate in e-filing.

If you choose to participate in e-filing, you must have access to a computer and a scanner or other device to convert documents into electronic format, a connection to the internet, and an e-mail address to receive service of documents.

The **benefits of participating in e-filing** include:

- Serving and filing your documents electronically
- Free access to view and print your e-filed documents
- Limiting your number of trips to the courthouse

- Paying any court fees on-line (credit card needed)

To register for e-filing or for more information about how e-filing works:

- Visit: www.nycourts.gov/efile-unrepresented or
- contact the Clerk's Office or Help Center at the court where the case was filed. Court contact information can be found at www.nycourts.gov

To find legal information to help you represent yourself visit www.nycourthelp.gov

Information for Attorneys

An attorney representing a party who is served with this notice must either consent or decline consent to electronic filing and service through NYSCEF for this case.

Attorneys registered with NYSCEF may record their consent electronically in the manner provided at the NYSCEF site. Attorneys not registered with NYSCEF but intending to participate in e-filing must first create a NYSCEF account and obtain a user ID and password prior to recording their consent by going to www.nycourts.gov/efile

Attorneys declining to consent must file with the court and serve on all parties of record a declination of consent.

For additional information about electronic filing and to create a NYSCEF account, visit the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: nyscef@nycourts.gov).

Dated: June 25, 2021

____ Michael H. Joseph, Esq. _____
Name

Law Office of Michael H. Joseph, PLLC
Firm Name

203 East Post Road

White Plains, New York 10601
Address

Tel: (914) 574-8330
Phone

Michael@newyorktriallawyers.org
E-Mail

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

SERON DOUGLAS ,

Plaintiff(s),

Index No.:

-against-

NAJI AL ABDI, MOHAMED ALI,
ONE FAMILY DELI GROCERY CORP.,
CITY OF NEW YORK,
P.O. JOHNNY OSORIO, SHIELD NO.: 18978 AND
PO JOHN LATANZIO, SHIELD NO.: 8320,

Defendant(s).

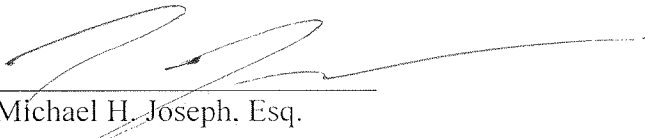
VERIFICATION

I, Michael H. Joseph, Esq., the undersigned, an attorney admitted to practice in the State of New York, state that I am a member of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York,
June 25, 2021



Michael H. Joseph, Esq.